

Court No. - 37

Case :- WRIT - C No. - 5207 of 2013

Petitioner :- Smt. Sadhana Mittal

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Sahab Tiwari, Saurabh Tiwari

Respondent Counsel :- C.S.C., Amrit Lal Yadav

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

Heard learned Counsel for the petitioner and Sri A.L. Yadav, learned Counsel for the respondents.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 5.5.2012, issued in the name of one Shanti Devi.

Learned Counsel for the petitioner submits that the petitioner has already filed an objection which has not been considered. Copy of the objection has been filed as Annexure-3 to the writ petition, which is addressed to the Managing Director.

We are of the view that under the U.P. Electricity Supply Code 2005, the petitioner has statutory remedy of raising objections against electricity bill or electricity charges. There being statutory remedy available to the petitioner, we are of the view that the petitioner may avail statutory remedy as provided under the U.P. Electricity Supply Code, 2005.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 30.1.2013

LA/-